

Cotton, L. J., that the power was well exercised, and the M. R. observed "If it is clearly settled that the first class of powers — powers simply collateral — can be exercised by an infant, there can be no reason why the second class of powers — powers in gross — should not be so exercised when the exercise cannot affect the infant's interest; I can see no sufficient distinction between * the two cases. It [*600] can make no difference that the infant has some interest under the settlement, so long as that interest cannot be affected by the exercise of the power" (a).]

4. **Bare powers, and powers coupled with a trust.** — Again, powers, in the sense in which the term is commonly used, may be distributed into *mere powers*, and *powers coupled with a trust* (b). The former are powers in the proper sense of the word; that is, *not imperative*, but purely *arbitrary*; powers which the trustee cannot be compelled to execute, and which, on failure of the trustee, cannot be executed vicariously by the Court (c). The latter, on the other hand, are *not arbitrary*, but *imperative*, have all the nature and substance of a trust, and ought rather, as Lord Hardwicke observed, to be designated by the name of trusts (d). "It is perfectly clear," said Lord Eldon, "that where there is a *mere power*, and that power is not executed, the Court cannot execute it. It is equally clear, that wherever a *trust* is created, and the execution of the trust fails by the death of the trustee or by accident, this Court will execute the trust. But there are not only a *mere trust* and a *mere power*, but there is also known to this Court a *power which the party by whom it is given is intrusted and required to execute*; and with regard to that species of power, the Court considers it as partaking so much of the nature and qualities of a trust, that if the person who has the duty imposed upon him does not discharge it, the Court will, to a certain extent, discharge the duty in his room and place" (e).

[(a) *Re D'Angibau*, 15 Ch. D. 228; and see *ante*, pp. 37, 38.]

(b) See *Gower v. Mainwaring*, 2 Ves. 89; *Cole v. Wade*, 16 Ves. 43; *Hutchinson v. Hutchinson*, 13 Ir. Eq. Rep. 332.

(c) See *Cowper v. Mantell*, 22 Beav. 231, and cases there cited; and *Re Eddowes*, 1 Dr. & Sm. 395.

(d) *Godolphin v. Godolphin*, 1 Ves. 23.

(e) *Brown v. Higgs*, 8 Ves. 570.